

		between the settler and the Plaintiff which would make the non-settling parties pay more than their fair share. (See Kimura Decl., ¶ 9.) Defendant states that the settlement amount is reasonable considering Plaintiff's claims against Defendant for the alleged assault and battery on the night at issue, as well as the risks and costs associated with experts, discovery, and trial. Per Code Civ. Proc., §877.6(d), "[t]he party asserting the lack of good faith shall have the burden of proof on that issue." No oppositions were filed. Accordingly, the Court finds that Defendant Jason Michael Fletchall-Silva's settlement with Plaintiff was made in good faith. Thus any claims for liability against Defendant by any other joint tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault, are barred. The case management conference is continued to November 30, 2026 at 10:00 a.m. in Department C27. Defendant shall give notice of this ruling, and file proof of service of same.
113	2023-01304133 Sepulveda vs. BaronHR West, Inc.	1. Motion to Be Relieved as Counsel of Record 2. Trial Setting Conference Eric Welch, Esq.'s motion to be relieved as counsel for Defendant BaronHR West, Inc. is continued to December 7, 2026 at 2:00 p.m. in Department C27. The trial setting conference is continued to the same date and time. Counsel has failed to file proof of service of the moving papers on Plaintiff and his client pursuant to Cal. Rules Ct., Rule 3.1362(d) and Cal. Code Civ. Proc., § 1005(b). In addition, the Court is not satisfied with counsel's representation that he has no reasonable ability to obtain his client's consent because the sole owner/shareholder is incarcerated. Counsel states he was advised that another attorney is handling all remaining civil issues including this case. If this is the case, it should not be difficult to obtain and file a substitution of attorney. Incarcerated individuals have access to counsel and the means to execute documents like a substitution of attorney. Accordingly, Defendant's counsel is ordered to serve notice of the continued hearing date and this order on his client and all other parties and file a proof of service of same pursuant to the Code of Civil Procedure, no later than 5 court days before the new hearing date. With the notice and proof of service, Counsel is also ordered to file a supplemental declaration if he cannot obtain the client's consent to a substitution detailing his efforts made in this respect.
114	2025-01524116 Doe vs. Eyenovia, Inc.	1. Motion – Other 2. Case Management Conference Defendant Michael Rowe's motion to revoke Plaintiff's Doe designation is granted.

Code of Civil Procedure section 367 requires that “[e]very action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute.” (Code Civ. Proc., § 367.)

CCP § 422.40 requires that a complaint include the “names of all the parties.” The filing of a complaint as a “Doe” impairs the public’s right of access to court records. (See Cal. Rules Court, rule 2.550(c).)

Courts, however, have noted that the California Legislature has expressly provided for such an exception and have affirmed the ability to proceed as a pseudonymous plaintiff under exceptional circumstances in which privacy rights are implicated. (*Doe v. Superior Court* (2016) 3 Cal.App.5th 915, 919.) “The judicial use of ‘Doe plaintiffs’ to protect legitimate privacy rights has gained wide currency, particularly given the rapidity and ubiquity of disclosures over the World Wide Web.” (*Starbucks Corp. v. Superior Court* (Fourth Dist., Div. 3 2008) 168 Cal.App.4th 1436, 1452, fn. 7; see also *Doe v. Lincoln Unified School Dist.* (2010) 188 Cal.App.4th 758, 765 [Section 367 requires that an action be brought by the real party in interest. It does not require that a party sue in his or her own name.])

California courts have discussed the use of pseudonyms and, in doing so, have noted that federal courts “have permitted plaintiffs to use pseudonyms in three situations: (1) when identification creates a risk of retaliatory physical or mental harm [citations]; (2) when anonymity is necessary ‘to preserve privacy in a matter of sensitive and highly personal nature,’ [citations]; and (3) when the anonymous party is ‘compelled to admit [his or her] intention to engage in illegal conduct, thereby risking criminal prosecution,’ [citations].” (*Doe v. Lincoln Unified School Dist.*, 188 Cal.App.4th at 767, quoting *Doe I thru XXIII v. Advanced Textile Corp.* (9th Cir. 2000) 214 F.3d 1058, 1068.) *Doe I thru XXIII v. Advanced Textile Corp* went on to hold that “a party may preserve his or her anonymity in judicial proceedings in special circumstances when the party’s need for anonymity outweighs prejudice to the opposing party and the public’s interest in knowing the party’s identity.” (*Doe I thru XXIII v. Advanced Textile Corp.*, 214 F.3d at 1068.)

Here, Defendant contends there are no special circumstances necessitating the need for a pseudonym and that Plaintiff’s privacy is outweighed by the public’s interest. Defendant argues that Plaintiff has not established why Plaintiff’s privacy concerns warrant anonymity and embarrassment and sham are insufficient to proceed under a Doe designation. This is particularly true given the strong public policy for open courts and full disclosure. Defendant also argues that the Doe designation impairs Defendant’s ability to conduct discovery and investigation. Defendants would be required to file any documents that could identify Plaintiff under seal.

In Plaintiff’s opposition, Plaintiff argues that sexually explicit images and videos taken from Plaintiff’s personal phone without consent involves highly sensitive and sexual privacy interests and that linking him to the existence of such context could cause humiliation, reputational harm, and emotional distress. Further, Plaintiff argues that Plaintiff faces severe risk of harm from disclosure. Plaintiff, however, does not file any declaration or any admissible evidence regarding Plaintiff’s privacy concerns and the risk of harm Plaintiff would suffer. For example, Plaintiff provides no evidence of Plaintiff’s age, whether or not Plaintiff is a public figure, whether threats of the images and videos being released have been made, whether Plaintiff risks any retaliation, etc.

To the extent that the pictures and videos themselves invoke privacy concerns, the Court finds that there are less drastic alternative measures to protect Plaintiff’s privacy that does not necessitate a Doe designation. For example, the parties could enter into a stipulated

protective order that seals any information that describes the contents of any explicit pictures of videos of Plaintiff. Such a protective order would balance privacy concerns, avoid public disclosure of the actual highly sensitive sexual privacy of Plaintiff, but also be narrowly tailored to specific documents and/or specific references. Rather than a broad Doe designation that seals everything about Plaintiff's identity, which would add burdens to Defendant's subpoenaing third parties and filings in this case, other alternative means that only seek to seal the description of what is contained in the pictures/videos balances both Plaintiff's and Defendant's interests.

In summary, the Court finds that Plaintiff has not met his burden of establishing that any of the exceptions arise to proceed with a pseudonym. Plaintiff has not offered any admissible evidence to establish the weight and extent of Plaintiff's privacy concerns and/or provide contextual facts that suggest that Plaintiff would suffer severe harm from disclosure of Plaintiff's identity. If the mere fact that litigation could reveal embarrassing allegations were sufficient to proceed anonymously, that would be the rule rather than the rare exception.

The motion is therefore granted.

The Court orders the parties to meet and confer on a stipulated protective order regarding non-public disclosure of pictures/videos and/or redacting/filing under seal the contents of any sensitive pictures/videos in any document that is filed in this case within the next 30 days.

To the extent that the parties may not agree, Plaintiff may file a motion for a protective order within 45 days of this order. Defendant is ordered to refrain from disclosing any explicit pictures and/or videos of Plaintiff and is prohibited from describing any of the contents of any explicit pictures or videos of Plaintiff until the parties have filed a stipulated protective order with the Court or the hearing on a motion for a protective order, whichever is later. To the extent that no stipulated order is filed within the next 30 days and no motion for a protective order is filed within the next 45 days, this order shall be lifted as against Defendants on the 46th day after this hearing.

The case management conference is continued to January 4, 2027 at 10:00 a.m. in Department C27.

Moving Defendant to give notice.